

24STCV29439 24STCV29439

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Case Number: 24STCV29439 Hearing Date: August 12, 2026 Dept: 407

Tentative Ruling

Judge Brock T. Hammond, Department 407

HEARING DATE: August 12, 2026 TRIAL DATE: November
23, 2026

CASE: Derek Lowe v. Sierra Corporate Management Inc.

CASE NO.: 24STCV29439

PLAINTIFF

DEREK LOWE'S MOTION FOR LEAVE TO

FILE

SECOND AMENDED COMPLAINT

MOVING PARTY: Plaintiff

Derek Lowe

RESPONDING PARTY: Defendant Larry

Methvin Installations, Inc.

I. INTRODUCTION

On November 8, 2024, Plaintiff, Derek Lowe, initiated this action against Defendant, Lake Street Preservation LLC (erroneously sued as "Sierra Corporate Management, Inc."), and Does 1 through 50, for negligence.

On August 19, 2025, Plaintiff filed the operative First Amended Complaint ("FAC") against Defendant for negligence and premises liability.

On September 8, 2025, Plaintiff filed an amendment naming Larry Methvin Installations, Inc. ("LMI") as Doe 1.

On July 8, 2026, Plaintiff filed this motion for leave to file the proposed Second Amended Complaint ("SAC") to add a strict products liability cause of action against LMI.

On August 3, 2026, LMI filed an opposition.

As of this writing, Plaintiff did not file a reply.

II. LEGAL STANDARD

The court

may, in its discretion and after notice to the adverse party, allow, upon any terms as may be just, an amendment to any pleading, including adding or striking out the name of any party, or correcting a mistake in the name of a party, or a mistake in any other respect. (Code Civ. Proc., § 473, subd. (a)(1).) "Public policy dictates that leave to amend be liberally granted." (Centex Homes v. St. Paul Fire & Marine Ins. Co. (2015) 237 Cal.App.4th 23, 32.) "Although courts are bound to apply a policy of great liberality in permitting amendments to the complaint at any stage of the proceedings, up to and including trial . . . this policy should be applied only 'where no prejudice is shown to the adverse party.'" [Citation]. A different result is indicated 'where inexcusable delay and probable prejudice to the opposing party' is shown. [Citation]." (Magpali v. Farmers Group, Inc. (1996) 48 Cal.App.4th 471, 487.)

A motion to

amend a pleading must include a copy of the proposed amendment or amended pleading which must be serially numbered to differentiate it from previous pleadings or amendments and must state what allegations in the previous pleading are proposed to be deleted or added, if any, and where, by page, paragraph, and line number, the allegations are located. (Cal. Rules of Court, Rule 3.1324(a).) The motion shall also be accompanied by a declaration

attesting to the effect of the amendment, why the amendment is necessary and proper, when the facts giving rise to the amended allegations were discovered, and why the request for amendment was not made earlier.” (Cal. Rules of Court, Rule 1.324(b).)¿

In ruling

on a motion for leave to amend the complaint, the court does not consider the merits of the proposed amendment, because “the preferable practice would be to permit the amendment and allow the parties to test its legal sufficiency by demurrer, motion for judgment on the pleadings or other appropriate proceedings.”¿ (Kittredge Sports Co. v. Superior Court (1989) 213 Cal.App.3d 1045, 1048.)¿ While the court may deny leave to amend where the proposed amendment is insufficient to state a valid cause of action or defense, such denial is most appropriate where the insufficiency cannot be cured by further amendment—i.e., where the statute of limitations has expired or the insufficiency is established by controlling caselaw. (California Casualty Gen. Ins. Co. v. Superior Court (1985) 173 Cal.App.3d 274, 280-281, disapproved on other grounds in Kransco v. American Empire Surplus Lines Ins. Co. (2000) 23 Cal.4th 390.)¿

III. APPLICATION

Plaintiff seeks leave to file the proposed SAC to add a strict products liability claim against LMI.

After reviewing the moving papers, opposition, and reply, the court finds Plaintiff does not establish having diligently sought leave to amend. Missing from Plaintiff's

counsel's declaration is any explanation as to why this cause of action could not have been asserted earlier. Further,

as LMI points out, Plaintiff has had knowledge of the facts giving rise to the strict products liability claim since January 2026 when LMI provided responses to Plaintiff's written discovery yet waited six months to file this motion. Trial is now less than four

months away. Permitting Plaintiff leave

to amend at this late hour would prevent LMI to develop an adequate defense in advance of the trial, thereby prejudicing LMI.

Plaintiff's delay and the prejudice to LMI support denial of the motion. To the extent Plaintiff contends

he learned of the facts after taking the deposition of LMI's person most qualified in late June 2026, Plaintiff fails to explain what new facts, if any,

were learned in the deposition and importantly, how or why LMI's January 2026 discovery responses did not apprise Plaintiff of his potential products liability claim.

IV. CONCLUSION

Based on
the foregoing, the motion is DENIED.

Moving party to give notice.

Dated: August 12, 2026

↵

↵ Brock T. Hammond↵↵

↵ Judge of the Superior
Court↵